

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: August 17, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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08	Richardson vs. Hyter, 24-01403124	<u>Motion to Compel Response to RFA</u> (ROA 46.) Defendants Benjamin Hyter, Bryan Hyter, Jesse Hyter, Brett Hyter, Bart Hyter, and Hyter Development Company, Inc. move to compel discovery. This is improper. Defendants should have filed separate discovery motions for each manner of discovery they deem insufficient. The motion is confusing as Defendants purport to seek further responses to requests for admissions rather than having admissions be deemed admitted, the section cited in the motion refers to a demand for production of documents, and the motion refers to interrogatories. Furthermore if this is a motion to compel further, the

		discovery motion must be accompanied by a separate statement. As a result, the motion is DENIED without prejudice and Defendants are granted 10 days leave to file new separate discovery motions. <i>Defendants to give notice.</i>
100	Holmes vs. Palmer, 25-01477135	Defendants James Palmer and Susan Palmer's Application For Pro Hac Vice Admission of Michael R. Sklaire is GRANTED. <i>Defendants to give notice.</i>
101	R.D. Olson Construction, Inc. vs. Pacific Coast Glazing, Inc., 26-01541399	<i>Off-calendar.</i>
102	RUME MEDICAL GROUP, INC. vs. UHC OF CALIFORNIA, 26-01550293	Defendants' Motion to Allow Robert G. Keefe of Boies Schiller Flexner LLP to Appear As Counsel Pro Hac Vice is GRANTED. <i>Defendants to give notice.</i>
103	Burton vs. Ford Motor Company, 25-01502626	<i>Withdrawn.</i>
104	Orange Tint, Inc. vs. Lim, 23-01367250	Counsel for Plaintiff Orange Tint, Inc. Moves for an order to be Relieved as Counsel. The motion is GRANTED. The Court continues the Case management Conference from 8/20/2026 to 9/10/2026 at 1:30 p.m. In addition, the Court sets a Status Conference re corporate representation of plaintiff for 9/10/2026 at 1:30 p.m. The Order Relieving Counsel is effective upon service on the client of the Court's Order granting the motion and advising of the next court date. <i>Moving Counsel to give notice.</i>
105	Kim vs. Mercedes-Benz USA LLC, 25-01515504	Counsel for Plaintiff Dan Young Tae Kim Moves for an Order to be Relieved as Counsel. The motion is DENIED without prejudice. The Motion and supporting papers were not served on the client. Cal. Rule of Court, Rule 3.1362(d). Calling alone as set forth in the declaration is insufficient to meet the service requirement as the attorney is required to at least serve at the last known address. <i>Moving Counsel to give notice.</i>
106	Maple Iron Grove LLC vs. Brown, 25-01455576	Counsel for Plaintiff Maple Iron Grove LLC Moves for an Order to be Relieved as Counsel. The motion is GRANTED.